

- RAG Learning

1.2 Parliament

Politics — AQA (7152) — Paper 1 (Government and Politics of the UK)

Parliament comprises the **House of Commons** (650 elected MPs), the **House of Lords** (several hundred unelected peers, with no cap on size) and the **Crown**. Because the UK fuses executive and legislature — ministers are drawn from and sit in Parliament — the central question for this topic is whether Parliament genuinely controls the government, or the government controls Parliament.

1. Composition

House of Commons

- 650 MPs, each representing a single constituency, elected by First Past the Post.
- The **Speaker** chairs debates, enforces the rules and is politically impartial.
- The **Official Opposition** is the largest non-government party; its leader receives Short Money and appoints a shadow cabinet.
- **Backbenchers** hold no ministerial or shadow office.

House of Lords

- **Life peers** — the large majority, appointed under the Life Peerages Act 1958.
- **Hereditary peers** — 92 remaining after the House of Lords Act 1999.
- **Lords Spiritual** — 26 Church of England bishops.
- **Crossbenchers** — peers with no party affiliation, a significant bloc since no party holds a Lords majority.

2. Functions of Parliament

Function	How it is performed	How well
Legislation	Debating, amending and passing statute	Weak on initiation — almost all bills are government bills and the government controls the timetable
Scrutiny	Select committees, questions, urgent questions, debates	Strongest through select committees; weakest where the government has a large majority
Representation	Constituency casework; representing national opinion	Good on casework; poor demographically and on translating votes into seats
Legitimation	Giving formal consent to taxation and (by convention) military action	Largely formal, but the 2013 Syria vote showed it can bite
Recruitment	Providing the pool from which ministers are drawn	Creates the payroll vote, which weakens scrutiny

3. The legislative process

1. **First reading** — formal introduction; no debate.
2. **Second reading** — debate on general principles, then a vote. The main opportunity to defeat a bill outright.
3. **Committee stage** — clause-by-clause scrutiny by a public bill committee, whose composition reflects the government's majority.
4. **Report stage** — the whole House considers the amended bill and may amend further.
5. **Third reading** — final debate and vote on the bill as amended.
6. **The other House** — the same stages; disagreements resolved by "ping-pong".
7. **Royal assent** — by convention never refused; last withheld in 1708.

Secondary (delegated) legislation

Ministers make law under powers granted by a parent Act, through statutory instruments.

Thousands are made each year and very few receive meaningful debate. This is a significant and growing scrutiny gap, sharpened by the volume of delegated powers taken to amend retained EU law after Brexit.

4. The House of Lords

Powers and limits

- Under the **Parliament Acts 1911 and 1949**, the Lords may delay a non-money public bill for **one year**, and a money bill for **one month**.
- The **Salisbury Convention** holds that the Lords will not block legislation implementing a governing party's manifesto commitments.
- It cannot initiate money bills, and cannot ultimately prevent a determined Commons majority.

Why the Lords has become more assertive

The removal of most hereditary peers in 1999 gave the chamber greater perceived legitimacy, and no single party has held a Lords majority since. Governments are now defeated in the Lords regularly, and frequently accept amendments or offer concessions rather than prolong ping-pong — particularly late in a session, when the threat of delay is a real source of leverage.

Exam Tip: The Lords' unelected status is **simultaneously its greatest weakness and a source of its value**. Being unelected limits how far it can press objections against the Commons — but it also frees peers from constituency and re-election pressure, allowing more independent, expertise-led revision. Any answer on Lords reform should confront that trade-off directly rather than picking a side.

Reform options

Option	Case for	Case against
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Fully elected	Democratic legitimacy for a chamber that amends and delays	An elected chamber would claim a rival mandate, threatening Commons primacy and risking gridlock — the point on which the 2012 reform bill collapsed
Partly elected	Combines legitimacy with retained expertise	Creates two classes of peer with unclear relative authority
Reformed appointment	A statutory appointments commission and a size cap would address patronage concerns without the difficulties of election	Leaves the chamber unelected; incremental rather than principled
Abolition	Ends the anomaly entirely	Removes a genuinely effective revising chamber; unicameralism concentrates power further in the executive

5. Scrutiny of the executive

Select committees

Permanent cross-party committees shadowing each department. Since the **Wright reforms of 2010**, chairs are elected by secret ballot of the whole House and members by their parties' backbenchers, which substantially increased independence from the whips.

- Can summon witnesses and require documents; take evidence in public.
- Publish reports to which the government must respond within 60 days.
- Build genuine expertise through permanence.
- **Limit:** no power to compel action; recommendations are frequently rejected. Influence rests on publicity, not sanction.

Questions and debates

- **PMQs** — high-profile but widely criticised as theatrical, rewarding soundbites over forensic questioning.

- **Urgent questions** — the Speaker's greater willingness to grant these since 2009 has genuinely strengthened scrutiny, forcing ministers to the despatch box at short notice.
- **Opposition days** — 20 days per session, but motions are not binding; governments have abstained and then ignored the result.
- **Backbench Business Committee** (2010) — gives backbenchers control of the agenda for a set number of days, taking topic selection from the executive.

6. Executive dominance

Why the government usually gets its way

- **The majority** — FPTP normally manufactures a single-party Commons majority.
- **The whips** — MPs depend on the party for selection, the label and promotion, so rebellion is personally costly.
- **The payroll vote** — around a hundred ministers and PPSs bound by collective responsibility, drawn from exactly the people best placed to scrutinise.
- **Control of the timetable** — the government determines what is debated and for how long.
- **The Lords can only delay.**

Elective dictatorship — Lord Hailsham's 1976 term for a system in which a government commanding a disciplined Commons majority faces few effective constitutional limits between elections, because Parliament is sovereign and no court may strike its legislation down.

Why the thesis is overstated

- It describes a **large-majority government**, not a permanent constitutional condition. May's government after 2017 suffered historic defeats.
- Backbench rebellion has become far more frequent since the 1990s, so the **credible threat** forces concessions that never appear as defeats in division records.
- The Lords has grown more assertive since 1999.

- Devolution, the HRA and expanded judicial review have all constrained the executive since 1997.

7. Representation

- **Constituency link** — each voter has one identifiable MP responsible for casework and redress. The strongest representative feature of the system.
- **Descriptive representation** — the Commons has become more diverse but remains unrepresentative in class background, and the Lords more so.
- **The mandate** — a winning party claims authority to implement its manifesto, which underpins the Salisbury Convention. Weakened by the fact that governments routinely win on 35–44 per cent of the vote.
- **The West Lothian question** — whether Scottish MPs should vote on England-only matters. EVEL (2015) attempted an answer and was abandoned as unworkable in 2021.

Key terms

Term	Definition
Parliamentary privilege	Legal immunities allowing Parliament to function — notably freedom of speech in proceedings under the Bill of Rights 1689
Salisbury Convention	The Lords does not block manifesto commitments
Payroll vote	Ministers and PPSs bound by collective responsibility to support the government
Ping-pong	Exchange of amendments between the two Houses until agreement is reached
Delegated legislation	Law made by ministers under powers granted by a parent Act

Elective dictatorship	Hailsham's term for executive dominance of a sovereign Parliament between elections
Wright reforms	2010 changes making select committee chairs elected and creating the Backbench Business Committee
Confidence and supply	An arrangement in which a party supports the government on confidence votes and the budget without a full coalition

Essential examples

- **2013 Syria vote** — Commons defeat of proposed military action; legitimisation with real force.
- **2019 Commons defeats** — May's withdrawal agreement lost by 230 votes, the largest government defeat in modern history.
- **Wright reforms 2010** — elected select committee chairs; Backbench Business Committee.
- **House of Lords Act 1999** — removal of most hereditary peers; a more assertive second chamber.
- **EVEL 2015–2021** — an attempted answer to the West Lothian question, abandoned as unworkable.
- **2012 Lords reform bill** — collapsed over Commons primacy.